

		Defendant maintains the first 998 offer, which was identical to the second 998 offer Plaintiffs accepted, cut off Plaintiffs' entitlement to subsequent fees and costs under <i>Gorobets</i>. Defendant asserts prior to the first 998 offer, Plaintiffs only incurred \$280.00 in fees and costs. Plaintiffs do not address the amount incurred prior to the first 998 offer. In their supplemental brief filed on 8/28/2026, Plaintiffs apparently concede the initial 998 offer was valid. However, they argue the second 998 offer "extinguished" the initial offer and <i>Gorobets</i> does not change this "last-offer rule." Plaintiffs also contend the 998 offer expressly deems them the prevailing parties. Notably, Plaintiffs did not raise either argument in their initial briefing pre-<i>Gorobets</i>. Defendant asserts the "last offer rule" is irrelevant to this case because the last 998 offer superseded the first 998 offer but did not render it ineffective in cutting off Plaintiffs' entitlement to fees and costs under section 998. The initial 998 offer had already been deemed revoked by operation of law when the second offer was served more than 30 days later. Therefore, the last offer rule is inapplicable because the Court is not presented with a situation where there are two section 998 offers pending at once. Plaintiffs are entitled to the fees and costs prior to the first 998 offer. Therefore, the motion is granted in the amount of \$280.00. Plaintiffs are ORDERED to submit a proposed judgment within 5 days. Clerk to give notice.
3	DI Overnite Investments, LLC vs. Nabal 30-2024- 01393386-CU- BT-CJC	Motion to Post Bond and Further Stay First Amended Cross-Complaint Cross-Defendant DI Overnite Investments LLC's (DIO) unopposed Motion to Post Bond and Stay the Cross-Complaint Until Bond is Furnished is GRANTED. "A shareholder's derivative suit seeks to recover for the benefit of the corporation and its whole body of shareholders when injury is caused to the corporation that may not otherwise be redressed because of failure of the corporation to act." (<i>Jones v. H. F. Ahmanson & Co.</i> (1969) 1 Cal.3d 93, 106.)

		Nabal's First Amended Cross-Complaint's first cause of action for fraud contains a derivative claim. Nabal alleges he is the owner of a 27.73% share in DIO and has lost "value of his interest in DI Overnite" (FACC, ¶¶ 13, 37.) Thus, Nabal has alleged an injury to DIO as a whole rather than to Nabal personally. Corporations Code section 17709.02, subdivision (b) provides: "(b) In any action referred to in subdivision (a), at any time within 30 days after service of summons upon the limited liability company or upon any defendant who is a manager of the limited liability company or held that position at the time of the acts complained of, the limited liability company or the defendant may move the court for an order, upon notice and hearing, requiring the plaintiff to furnish security as hereinafter provided. The motion shall be based upon one or both of the following grounds: (1) That there is no reasonable possibility that the prosecution of the cause of action alleged in the complaint against the moving party will benefit the limited liability company or its members. (2) That the moving party, if other than the limited liability company did not participate in the transaction complained of in any capacity" Nabal has not complied with requirement to maintain a derivative claim in Corporations Code section 17709.02, subdivision (a)(2) which mandates the plaintiff allege their efforts to inform the LLC of the derivative claims asserted. Additionally, the factual basis for the derivative claims in the FACC are unclear, as Nabal alleges no nexus between his claims of fraud and the diminution in value of his interest in DIO. There is no reasonable possibility of Nabal prevailing on his derivative claims. The Court finds DIO's uncontroverted evidence of attorney fees exceeding the statutory maximum of \$50,000 to be credible. Cross-Complainant Philip Nabal is ORDERED to furnish a bond of \$50,000 within 10 days. Failure to post the bond as ordered will result in a court order dismissing the first cause of action for fraud. (Corp. Code, § 17709.02, subd. (c)(2).)
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		Nabal's prosecution of the first cause of action for fraud is STAYED pending posting of the bond and/or dismissal. Clerk to give notice.
4	Collision vs. KRC Santa Margarita, LLC 30-2025-01530542-CU-PO-CJC	Demurrer to First Amended Complaint Defendant Kisco Senior Living, LLC (Kisco)'s Demurrer to Plaintiff's First Amended Complaint is OVERRULED. The FAC is not uncertain. At this stage, the allegations are sufficient to put Kisco on notice of the claims against it. Any additional factual detail may be obtained through discovery. <u>First cause of action for Elder Abuse</u> Plaintiff alleges sufficient facts to support a cause of action for Elder Abuse. (FAC ¶¶ 14-16, 16-73; see <i>Delaney v. Baker</i> (1999) 20 Cal.4th 23, 31-32.) Plaintiff also alleges sufficient facts to allege a custodial relationship (FAC ¶¶ 1, 3-4, 6, 13) and corporate ratification (FAC ¶¶ 66, 71.) <u>Second cause of action for negligence</u> Plaintiff alleges sufficient facts to support her negligence cause of action as well as a continuing course of neglect. (FAC ¶¶ 41, 42, 62, 95-97; see <i>Aryeh v. Canon Business Solutions, Inc.</i> (2013) 55 Cal.4th 1185, 1197-1200.) Motion to Strike First Amended Complaint Defendants KRC Santa Margarita, LLC and Kisco Senior Living, LLC's Motion to Strike is DENIED. As Plaintiff's cause of action for elder abuse under the Elder Abuse Act was sufficiently alleged for purposes of demurrer, Plaintiff has also sufficiently alleged facts to support her request for punitive damages and attorney fees. Defendants are ORDERED to file an answer within 5 days. Clerk to give notice.
5	Albanese vs. Navient Corporation	Demurrer to First Amended Complaint Off calendar – withdrawn at demurring party's request.